

Complaint Report (CCRB)

CCRB Case No :	200909347	C/V Report Date :	Mon, 06/15/2009
Complaint Type :	CCRB	Investigator :	Suzanne Donnelly
Complaint Made At :	CCRB	Ref. No	
Received Date (CCRB) :	Mon, 06/15/2009	Mode :	Mail
Incident Date(s) :	Fri, 04/17/2009 10:15 PM		
Place of Occurrence:	[REDACTED]	Precinct:	41
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	Parking violation		
Charges:	Summons - disorderly conduct		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	

Gender:

Person Assisting:

Ethnicity:

Date of Birth:

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	Tommy Youkhan	Subject Officer		Other Race	041	Frisk - (A) Exonerated
POM	Edward McClain	Subject Officer		White	041	Threat of arrest - (A) Exonerated
POM	Edward McClain	Subject Officer		White	041	Frisk - (A) Exonerated
	An officer	Subject Officer				Refusal to provide name/shield number - (A) Officer(s) Unidentified

Initial Complaint Narrative

states that she was with her boyfriend double parked in front of , Bronx, N.Y. Across the street was her boyfriend's brother double parked at an angle in the cross walk. In the passenger seat was his cousin . They had just finished unloading groceries and were exchanging farewell when states she noticed a marked police car pull up beside her car then continue further up the street to the stop sign. states that also noticed the police car and got into his car to avoid being issued a double parking ticket. states that while heading towards the with trailing behind them was pulled over by the police car they had seen earlier states that they made a U-Turn and pulled up in front of the police car and double parked. Upon exiting the car states she saw being frisked by officer Youkhan (Badge # 13950) and officer McClain's arm stretched into the passenger side of s car and questioning . When and asked why was pulled over the officers told them to get back in their car. As observed officer McClain search s car she stated to the officers "It's illegal to search his car with out his consent". states that after checking s license and registration he was allowed to leave without being issued a ticket. She further states that when she asked officer McClain for his badge number and name he responded "If I give you my info then both of you have to give me your ID's because I'm giving you both "discon" tickets". states that officer McClain returned with three tickets, two disorderly conduct and one for . states that during the incident made a U-Turn on a two way street and parked their car across the street as instructed by the police officers contends that the officers conducted a warrantless search for a simple parking violation.

Witness